



BY EMAIL ONLY

**25 August 2026**

## **Message from the Chief Planner**

### **CONSULTATIONS ON PLANNING POWERS FOR MAYORS AND PLANNING AGREEMENTS FOR MEDIUM SIZED SITES LAUNCHED**

Dear Chief Planning Officer,

I am writing to draw your attention to two important planning consultations launched this week covering the implementation of new planning powers for mayors and proposals to introduce standard planning agreements for medium-sized housing sites.

This letter covers:

- **A Consultation on planning powers for mayors:** including proposals to implement new mayoral planning powers outside London, including powers relating to strategically important planning applications, Mayoral Development Orders, Mayoral Community Infrastructure Levy and changes to Local Development Orders.
- **A Consultation on standard planning agreements for medium-sized sites:** including proposals for standard section 106 agreements and affordable housing schedules intended to simplify negotiations, reduce delays and provide greater consistency and certainty for medium-sized housing developments.

## **Consultation on planning powers for mayors**

The [Rewiring the State Cabinet Statement](#) published on 31 July 2026 made clear the government's commitment to move power, resources, and responsibility from central government into the hands of local leaders. This includes implementing the planning powers for mayors of combined authorities and combined county authorities outside of London.

On 24 August the government launched a consultation on the mayoral planning powers flowing from the English Devolution and Community Empowerment Act 2026. This consultation covers policy on planning applications of potential strategic importance, Mayoral Development



Orders, Mayoral Community Infrastructure Levy and changes relating to Local Development Orders.

**The consultation closes at 11:59pm on 5 October and is available here: [Planning powers for mayors in England - GOV.UK](#).**

## Planning applications of potential strategic importance

The consultation seeks views on the approach to applications of potential strategic importance (PSI applications), including giving mayors these powers prior to adopting their Spatial Development Strategy. The powers will allow mayors to call-in or direct refusal of PSI applications, similar to powers already available to the Mayor of London. It also covers some technical changes to the existing process in London, and the approach to written representations for called-in applications.

## Mayoral Development Orders

A Mayoral Development Order (MDO) is a strong regeneration tool, allowing mayors to proactively grant upfront permission for important strategic developments in their area without needing to wait for planning applications to be submitted. The consultation seeks views on the procedure for making, revising and revoking MDOs which the government is proposing will largely follow the procedures already in place for Local Development Orders (LDOs).

## Mayoral Community Infrastructure Levy

A Mayoral Community Infrastructure Levy (MCIL) will give mayors the ability to directly raise money from new development within their areas to help fund vital strategic infrastructure to support that development and drive economic growth in their areas.

In London, which has had an MCIL since 2012, it has been critical in helping to fund the delivery of the Elizabeth Line. The consultation seeks views on conditions and requirements for becoming a Mayoral charging authority and collecting and spending MCIL outside of London.

## Local Development Orders

The consultation also seeks views on changes to secondary legislation for LDOs. These changes would remove the current restriction on using LDOs to grant permission for development which would affect a listed building, impose a restriction preventing the use of LDOs for minerals development and remove the current requirement to make LDO documents



available for inspection at the principal offices of the local planning authority, and instead enable the authority to choose an appropriate location.

## Next steps

The government's aim is to lay the relevant regulations for PSI applications and MDOs later this year following the six-week consultation period and for the powers to become available in early 2027. In using these powers, the government expects mayors to work in close partnership with local planning authorities in their areas to deliver housing, infrastructure and good growth for local communities.

I would strongly encourage all local planning authorities and others across the planning sector to engage positively with this consultation and share their views. This is an important opportunity to help shape how these new powers work in practice and to ensure they support effective partnership working, high-quality development and positive outcomes for communities.

## Consultation on standard planning agreements for medium-sized sites

On 25 August the government launched a consultation seeking views on a **set of standard planning agreements for medium-sized housing sites**. The proposals are intended to help streamline the negotiation of section 106 agreements, provide greater certainty for local planning authorities and developers, and reduce the time and resources spent negotiating standard provisions.

Section 106 agreements remain an important mechanism for securing affordable housing, infrastructure and other measures necessary to make development acceptable in planning terms. However, the process of negotiating agreements can be resource-intensive, which can have a disproportionate impact on small and medium-sized developers. The government therefore sees greater standardisation, particularly for smaller schemes, as an important part of creating a simpler and more proportionate planning system.

The consultation applies to medium development, which the new National Planning Policy Framework defines as housing development providing between 10 and 49 homes, on a site of up to 2.5 hectares. The NPPF also provides the policy basis for greater use of model planning obligations, stating that where national model planning obligations are relevant to a



development they should be used unless there are strong reasons for taking a different approach.

The consultation seeks views on four draft templates:

- a bilateral section 106 agreement, including standard clauses and schedules for financial contributions and local planning authority covenants;
- a unilateral undertaking, including standard clauses and a schedule for financial contributions;
- an Affordable Housing Schedule for full planning permissions, including a discretionary cascade mechanism; and
- an Affordable Housing Schedule for outline planning permissions.

The proposed templates are intended to become the default approach for relevant applications in future, reducing the amount of time spent agreeing standard provisions and allowing local planning authority capacity to be focused on more complex or site-specific matters. Planning obligations would, of course, continue to need to meet the relevant statutory tests and be appropriate to the individual development.

## Affordable housing

The draft Affordable Housing Schedule for full planning permissions also includes a proposed discretionary cascade mechanism for circumstances where, despite reasonable efforts, it has not been possible to secure an Affordable Housing Provider to take some or all of the affordable homes on a development.

The mechanism is intended to provide a structured process which prioritises the delivery of affordable housing on site, including opportunities to consider an alternative tenure mix and interest from the local authority, before ultimately allowing a financial contribution in lieu where on-site delivery cannot be achieved. Its use would remain at the discretion of the local planning authority, taking account of local circumstances, and does not change the NPPF's preference for affordable housing to be provided on site.

The draft templates have been developed with Town Legal LLP and the Planning Advisory Service, alongside engagement with local planning authorities, developers and legal practitioners. Feedback through the consultation will help shape the final templates before they are introduced.



**The consultation closes at 11:59pm on 20 October and is available here: [Standard planning agreements for medium-sized sites - GOV.UK](#).**

I would encourage local planning authorities to consider the draft templates carefully and share their practical experience of negotiating and administering planning obligations. Your feedback will be particularly valuable in ensuring that the final documents are workable, proportionate and capable of delivering genuine efficiencies for authorities, applicants and communities.

## Closing remarks

Both consultations form part of the government's wider work to create a more effective, streamlined and rules-based planning system, while giving local and strategic leaders the tools they need to support housing delivery and sustainable economic growth.

The experience and expertise of local planning authorities will be important in getting these reforms right. I would therefore encourage you to engage with both consultations and share your views on how the proposals can work most effectively in practice.

Thank you, as ever, for your continued work and commitment to delivering a high-quality planning service and supporting the communities you serve.

This letter, along with all previous Chief Planner Letters and Newsletters, is available on GOV.UK [here](#).

Yours faithfully,

**Joanna Averley**  
**Chief Planner**